THE STATE

Versus

GEORGE GODOBWE

HIGH COURT OF ZIMBAB WE
MUTEVEDZI & NDUNA JJ
BULAWAYO, 27 NOVEMBER 2025

Criminal review judgment

MUTEVEDZI J: The record of proceedings was placed before me for review in terms of s 57 (1) of the Magistrates Court Act [Chapter 7:10] (the MCA). The proceedings are a dog's breakfast. They are hardly understandable. The numerous indiscretions therein being blamed on the Integrated Electronic Case Management System (IECMS). It can only be a scapegoat. In the case of *S v Alton Ndlovu* HB179-25 I was unapologetic when I stated that: -

> "The trial magistrate and all others, must note that the IECMS is a human driven electronic tool. It does not function independently of the human element. It is intended to assist in smoothening over many of a judicial officer's tasks. To those of us who have been using it for a while, it is an invaluable tool for judges and magistrates. Yet it remains dependent on what is inputted by the judicial officers themselves. It does not relieve a magistrate of the responsibilities that he/she has always carried in preparing records for review and ensuring that the proceedings are accurately captured. The system is efficient. Judges will not accept it being scapegoated for the carelessness of a trial magistrate. If anything, the responsibility to feed accurate information into the system actually becomes heightened because like many electronic systems, the IECMS cannot be rigged. It is unforgiving and will always reflect that which went into it. It follows therefore that the record of proceedings on the IECMS platform must reflect the full proceedings. Any other explanation outside the record of proceedings cannot be considered formal. It is the duty of the trial magistrate to ensure that the proceedings that are captured on IECMS are a true and correct reflection of what transpired in court. That way transparency is achieved and justice is served."

[1] The little that is discernable from this record is that nine accused persons were arrested in connection with allegations of smuggling in Beitbridge. They all appeared before the court of a magistrate at Beitbridge Magistrate Court on a charge of contravening the Customs and Excise Act [Chapter 23;02] (The Customs Act). The charge as it was framed, created a total aberration. I reproduce it below, with all its errors: -

> **"Contravening s 174(2)(b) of the Customs and Excise Chapter 23:02 "Buying or receiving or has in possession of any goods required to be accounted for by this Act.".**
>
> In that on the 01st day of October 2025 and at Maware area, Beitbridge….one or more of them unlawfully found in possession of uncustomed goods being South African products that are required to be accounted for, as listed on annexure A and B, in contrary of the said Act…

[2] I am not sure if the magistrate and the prosecutor themselves understood the above charge. I suspect they did not, if the haphazard way in which the trial proceeded from the time the accused persons appeared in court is anything to go by. In fact, the proceedings betray a total failure by the trial magistrate to understand the basics of criminal procedure.

[3] To begin with s 174(2)(b) of the Customs Act is couched as follows: -

> Any person who-
> (a)…
> (b) otherwise than in accordance with this Act, has in his possession any goods required to be accounted for by this Act or any law relating to customs or excise before they have been so accounted for:
> (c)…
> Shall be guilty of an offence, unless he produces evidence to show that he did not know-
> (i)…
> (ii) that duty on the goods had not been paid or secured or that the goods had not been accounted for in terms of this Act or any other law relating to customs or excise

[4] The penalties for a contravention of both subsections (a) and (b) of s 174 are provided for under subsection (2a). It is trite that where the penalty for an offence appears in a provision different from the one which creates the offence, both the offence creating and the penal provisions must be cited in the charge. Section 174(2)(b) must therefore have been read together with subsection (2a). Unfortunately, the charge made no reference to the penal section. It is not possible to hold that an accused person genuinely pleaded guilty to a charge whose punishment he or she was completely in the dark about. That omission on its own is enough to vitiate the accused's supposed plea of guilty. But that was only the beginning because as can be seen from above, the charge itself failed to circumscribe the essentials of the crime.

[5] Although it is expressed in the negative, s174(2)(b) creates an offence which must be committed with intention in the form of knowledge. A person is guilty unless if he can demonstrate that **he did not know** that that duty on the goods had not been paid or secured or that the goods had not been accounted for in terms of this Act or any other law relating to customs or excise. Put in another way, a charge under the section must as of necessity

mention that the accused person possessed the goods with **the knowledge** that duty had not been paid on them or that they had not been accounted for as required by law. Yet in this case, the charge was not only a bare statement but introduced some requirement which does not appear in the legislation altogether. It stated that the goods were 'uncustomed.' Besides being ungrammatical, I failed to understand what being 'uncustomed' meant. The accused certainly couldn't either.

[6] The circumstances which had led to the jumbled-up charge were that on 1 October 2025 at an area called Maware, detectives from CID Beitbridge who were on border surveillance intercepted a white Toyota Hiace vehicle being driven by the first accused and the second to sixth accused were passengers. The vehicle was laden with an assortment of goods. When asked about the goods, the six accused persons failed to produce customs and declaration documents. They were then arrested. Upon their arrest, the six implicated a seventh accused who was driving another vehicle behind theirs. In it were the eighth and ninth accused persons.

[7] As earlier stated, all the suspects subsequently appeared in court on 14 October 2025, where they were charged as indicated above. It is the record of those proceedings that I mentioned was not kept in accordance with what is expected of a court of law. Very basic but crucial steps and information were omitted from the record. It is usually unnecessary for this court to go to town to explain the elementary issues that I deal with here. But, clearly, many new magistrates continue to join the lower bench. The High Court must not therefore shirk its responsibility to supervise the Magistracy.

[8] For starters, the magistrate did not even indicate his or her rank. Instead, he or she stated that they were a judge. It was upon enquiry from the Chief Magistrate's office that I only got to know that such misrepresentation was a result of a failure by the trial magistrate not only to proof read his/her proceedings but to also select the appropriate judicial officer's title from the IECMS platform which auto generates such titles. As already stated, the IECMs does not do the work of a magistrate. It only helps a magistrate do their work. I will later on revert to deal with the omissions. But that aside, at the commencement of the trial, the charge was read and explained to the nine accused persons who thereafter tendered their various pleas. It appears that everything was lightning fast. Before the court could

confirm the accused's pleas, the prosecutor was already seeking a postponement. The court, without raising an eyebrow dutifully granted it. The nine accused persons were then granted bail. On their next date of appearance, the prosecution directed that the six accused persons who had pleaded not guilty to the charge be stood down. They were duly stood down. Unfortunately, there are no clear reasons on the record why that was so. The court appeared disinterested because the trial magistrate's involvement is not shown on the record of proceedings. Clearly, the intention here was to separate the accused who had pleaded not guilty from those who had admitted the crime. But magistrates must be aware that once an accused has appeared before a court, a prosecutor cannot do as he/she pleases. Every move that they make must be an application which is sanctioned by the court. The State cannot just whisky away accused persons from the dock without seeking the permission of the court. Where that happens and the court allows or acquiesces to it, the result is a complete abdication of its functions and responsibilities. As such the prosecutor ought to have made a proper application for the separation of the trials of the accused persons which the court was going to either grant or refuse. Where such application is granted, separate records for the accused who would have been taken off the existing record of proceedings would be opened. The court is then permitted to proceed with the trial of those accused persons pleading guilty to the charge. The separated accused persons do not just disappear. They are formally remanded to some future date or dealt with in any one of the ways that I will explain later.

[9] When the prosecutor achieved his/her unilateral separation, three accused persons namely Elson Njajeya, George Godobwe and Sufficient Hlongwani remained in the dock. The facts as stated on the state outline were re-read to them. But soon thereafter another bizarre procedure mushroomed. The exchange which followed between the three and the trial magistrate was recorded as follows: -

> Q: Do you understand the facts that were read to you?
>
> A1: Understood; A2- Understood; A3- Understood
>
> Q: Any variations.
>
> A1- Q: Who is the owner of the things?; A2- No variation
>
> Q: Accused 2 you hired first accused person.
>
> A: Yes.

Q: Yes, what is it.

A: I was also hired by second accused person who is the owner of the goods.

Q: Second accused person, is that correct?

A: Yes.

1st and 3rd accused persons can you stand down

[10] It is difficult, from the above exchange, to comprehend what happened except that the first and the third accused persons were abruptly and for no apparent reason stood down. What is clear is that whatever they had told the court did not amount to a denial of the charge. That they had been hired couldn't exonerate them from liability if they had been aware that the goods they had been hired to ferry had not paid duty or been accounted for in terms of the law. With the release of the two, it left the accused in these proceedings as the unfortunate one. He was dragged through the remainder of the botched trial because just after the standing down of his two accomplices, the notice of seizure and some document depicting the value that ZIMRA was prejudiced of were then smuggled into the record. I remark that they were smuggled because the proper procedure of admitting such documents was not even referred to. The magistrate then proceeded to canvass what he/she thought were the essential elements of the charge. From the exchange it is not clear what exactly the accused was admitting to or denying. That interaction, once again with the errors as per the record, went as follows: -

"Q. Is it correct that you did or maybe l should ask, did you declare the good or pay for the duty required by ZIMRA upon entry at the border?
A. No

Q. Why did you not pay?
A. I didn't know l was supposed to pay.

Q. What do you mean?
A. I was arrested when l was at my rural, I did not know…

Q. I mean from the border. What do you mean you did not know. Are you telling this court that you bought so many staff worth of that amount and crossed the border without knowing that they did not pay. I want to ascertain if we should alter this plea to go to trial or not
A. I has some items that l bought here in Beitbridge prior and l would not declare.

Q. I am talking about things that you cross the border with on this day in question that you hired your co-accused to ferry?
A. It was because of ignorance.
Q. But you did not declare?
A. I did not. I tried to get profit." (sic)

[11] The above was all in the form of the essential elements. The misfortune of the accused is there for everyone to see. He attempted to deny the offence but the court would have none of it. It convicted him of the crime yet the others who had barely denied were let loose. Once he/she had entered the guilty verdict the trial magistrate sentenced the accused as follows:

> "Offender is sentenced to 14 months imprisonment of which 6 months imprisonment is suspended for 5 years on condition the offender does not during that period commit any offence involving smuggling for which upon conviction is sentenced to imprisonment without the option of a fine. 8 months imprisonment is suspended on condition the offender completes 280 hours of community service at Beitbridge National Housing on the following conditions:
>
> a. Community service starts on 16 October 2025 and must be completed within 8 weeks of that date unless leave of absence is granted. Community service shall be performed between the hours of 8am to 1pm and 2pm to 4pm on Mondays and Fridays which are not public holidays and to the satisfaction of the person in charge of that institution whom he court has granted authority to grant the offender leave of absence on a particular day(s) or during certain hours of good cause shown.
> b. Any such leave of absence shall not count as part of community service performed."

[12] The above proceedings as captured did not meet the minimum standard of the recording of a plea of guilty in terms of s 271(2)(b) of the Criminal Procedure and Evidence Act [Chapter 9:07] (the CPEA). I did not even bother to ask the trial magistrate to respond to the various transgressions stated above because my view was that no amount of explaining could reconcile the apparent misdirections. From the onset, the magistrate adopted and employed his or her own methods which are foreign to Zimbabwean criminal procedure. I have already demonstrated how muddled the separation of the accused persons' trials was. It was worse for those that pleaded guilty. There was no proper pronouncement as to which provision the plea recordings intended to follow. The trial magistrate ought to have stated whether he/she was proceeding in terms of s 271(2)(a) or 271(2)(b) yet the law requires that. In fact, the choice of either of the provisions is usually on the guidance of the prosecutor. It is so, because the prosecutor more often than not, is presumed to know the background of the case more than the magistrate. He/she may be aware that an accused has previous convictions or some other damning issues that would force the court to impose imprisonment.

[13] Added to the above, I noticed that the magistrate did not indicate the dates on which the plea or the verdict were entered. I stated in *S v Hungwe* HB111-25 that "those issues may look insignificant but can actually cause a lot of strife in cases of appeals and reviews

which are filed in compliance with strict deadlines. The date on which a person was convicted or sentenced may determine the fate of an appeal or a review. It is therefore important for judicial officers to treat such matters seriously." The same applies to failure to state the judicial officer's rank. A review or appeal court can only determine whether or not a magistrate had jurisdiction to impose a particular punishment or try a particular offence if the rank of that magistrate is apparent from the proceedings.

[14] Further, once the accused persons had pleaded differently, the state had a couple of options available to it. Firstly, if the prosecutor was of the view that he/she did not have evidence against the accused persons who denied the charge, and did not wish to proceed with their prosecution, he/she was required to withdraw the charges against such accused after plea. What effect that would have had on those accused is an argument for another day. The second option available to the prosecution was to apply for a separation of the trials in terms of section 190 of the CPEA. That route is permissible if the prosecution wishes to prosecute the other accused persons further through a contested trial. Where that option is chosen, the accused person is then formally remanded to appear in court on a future date. The trial of the accused who pleaded guilty proceeds in the ordinary way.

[15] Returning to the recording of the guilty plea, I noted two further fundamental indiscretions. First, the admission of exhibits into the record of proceedings was done in arbitrary fashion. I mentioned earlier that the notice of seizure and the document stating the value of prejudice were tendered into the record without any regard to procedure. That an accused has pleaded guilty does not take away his or her fair trial rights including the procedural tendering and admission of exhibits. Ordinarily, the documents which were tendered would constitute *prima facie* evidence which may become conclusive if not attacked or controverted. It was thus important that the accused participated in their production. It is wrong for the prosecution and the court between themselves to deliberate on the admission of exhibits which incriminate an accused person without that accused's involvement or input. In addition, an accused retains the right to be served with exhibits that will be used against him/her at his trial at least 72 hours before the commencement of that trial. Besides being statutory that is a salutary principle of a fair trial. Such notice can only be dispensed with where the accused waives that right after a full explanation of those

rights by the court. The second issue is that this Court has on several occasions, stated the requirement to properly canvass the essential elements of a charge as envisaged by s 271(2)(b)(i) and (ii) of the CPEA. The purpose of explaining the essential elements of an offence to an accused person, more particularly one who is unrepresented at trial, is for the court to satisfy itself that the accused person is tendering a genuine plea of guilt and that he is doing so from an informed position. The accused must not only understand the crime he is facing but must equally appreciate its constitutive elements. In the case of *S v Dube & Anor* 1998 (2) ZLR 385 (S) at p 385H – 386 A, DUMBUTSHENA CJ commenting on the requirement for a judicial officer to exercise care when taking a plea of guilty said:

> "Where there is a plea of guilty, judicial officers must be careful not to regard every fact as proved just because it is admitted. Where the accused admits "possession" of prohibited article, the court must establish just what the accused is admitting, possession being a difficult legal concept. A similar caution applies to the explanation of the charge and the elements of the offence."

[16] S 271 (2) (b) of the CPEA, requires that the magistrate be satisfied, before he/she can convict an accused person that the accused understands what they are admitting to. The satisfaction must come from a careful verification of the accused's plea of guilty by confirming it through questioning him on his attitude regarding the essential elements of the crime charged. It is not possible for a magistrate to be so satisfied if he/she asks several general questions which do not clearly show which essential element is sought to be proved. The questions asked by a court must not be meant to intimidate the accused into admitting. Instead, they must be intended to explore the essential elements of the crime in issue

[17] In this case, the questions that were asked of the accused were not capable of establishing who had bought or received or possessed the so-called 'uncustomed' goods. It remained unclear what exactly the accused had done. His responses to the magistrate's clouded questions betrayed that. The answers were far from satisfying the magistrate that the accused's participation in the offence charged and therefore his guilt had been proved beyond reasonable doubt. S 272 of the CPEA provides that: -

> "If the court, at any stage of the proceedings in terms of section *two hundred and seventy-one* and before sentence is passed—
>
> (*a*) is in doubt whether the accused is in law guilty of the offence to which he has pleaded guilty; or

> (*b*) is not satisfied that the accused has admitted or correctly admitted all the essential elements of the offence or all the acts or omissions on which the charge is based; or
> (*c*) is not satisfied that the accused has no valid defence to the charge;
> the court shall record a plea of not guilty and require the prosecution to proceed with the trial:"

[18] There was a cloud of doubt as to the guilt of the accused in this case given his answers. That must have directed the trial magistrate to stop the plea recording in terms of s 272. He/she must have altered the plea of guilty to not guilty and leave prosecution to their devices of proving the accused's guilt beyond reasonable doubt as required by law.

[19] In conclusion, I may add that the court of a magistrate is a court of record as provided in section 5 of the MCA. That phrase simply means that everything that happens in that court must be documented in one form or another. That record of the proceedings must be maintained in a way that will ultimately be understandable to everyone. The parties, the court itself, an appeals or review court and at times the general public are all keenly interested in the proper maintenance of the record of the magistrate's court's proceedings. A haphazardly kept record of proceedings may easily hinder litigants from seeking remedies available to them. The remarks in *S v Alton Ndlovu* (supra) stated in the introductory paragraph of this judgment remain salutary and must guide magistrates.

[20] That having been said, the trial magistrate's errors are too apparent and deep seated for me to gloss over them. They are gross and go to the root of the decision ultimately arrived at and affect the accused's fair trial rights. The proceedings were conducted without a semblance of adherence to the strict rules of criminal procedure. Clearly, the conviction is therefore, not in accordance with real and substantial justice. I cannot allow it to stand. Once the conviction is vacated, the sentence has no leg to stand in. It equally falls of. I accordingly direct that: -

a. The court aquo's proceedings be and are hereby are quashed
b. The accused's conviction be and is hereby set aside
c. The matter is remitted to the court aquo for a trial *denovo* before a different magistrate
d. In the event that the accused is convicted pursuant to the new trial, whatever punishment he may have already served must be considered when the new punishment is imposed.

MUTEVEDZI J……

NDUNA J …….I agree